

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

JUSTICE MALIK SHAHZAD AHMAD KHAN
JUSTICE MUHAMMAD SHAFI SIDDIQUI
JUSTICE SHAKEEL AHMAD

CRIMINAL PETITION NO. 629-L OF 2025 AND
CRIMINAL MISC. APPLICATION NO. 45-L OF 2026

(On appeal against the judgment dated 23.04.2025 of the Lahore High Court, Lahore in Cr. Appeal No. 85632-J of 2023)

Fakhar Abbas

... Petitioner

Versus

The State etc

...Respondents

For the Petitioner: Mr. Muhammad Ayyaz Butt, ASC

For the State: Mr. Muhammad Jaffar, Addl. P.G. Punjab

Assisted by: Mr. Ghulam Muhammad Adnan, Law Clerk

Date of Hearing: 27.04.2026

JUDGMENT

MALIK SHAHZAD AHMAD KHAN, J.-

CRIMINAL PETITION NO. 629-L OF 2025

Fakhar Abbas, petitioner, was tried by the learned Additional Sessions Judge/Judge, Special Court CNSA, Nankana Sahib pursuant to a case registered vide FIR No. 93 dated 20.02.2023 under Section 9(1)3-C of the Control of Narcotic Substances Act, 1997 at Police Station Syed Wala, District Nankana Sahib. The learned Trial Court vide its judgment dated 30.11.2023 convicted the petitioner under Section 9(1)3-C of the Control of Narcotic Substances Act, 1997 and sentenced him to rigorous imprisonment for nine years. He was also directed to pay fine of Rs.80,000/- or in default whereof to further undergo five months simple imprisonment. Benefit of Section 382-B Cr.P.C. was extended in favour of the petitioner. In appeal, the learned High Court upheld the judgment of the learned Trial Court.

2. Arguments heard. Record perused.

3. Learned counsel for the petitioner at the very outset has referred to the judgment of this Court reported as Raham Gul Vs. The State (2026 SCMR 584) to support his argument that the complainant cannot act as an investigating officer as it compromises the neutrality of investigation and as the complainant of this case is also an investigating officer of the case, therefore, it has prejudiced the case of the petitioner, hence, he be acquitted on this ground. In order to consider the above-mentioned argument of learned counsel, leave is granted in this petition, which is converted into an appeal.

4. As per prosecution evidence, on 20.02.2023 at 01:05 PM, the petitioner was caught red handed by the local police and charas weighing total 1460 grams wrapped in two (02) separate packets was recovered from his possession. Two sample parcels of 50 grams and 23 grams each were prepared and sealed for chemical analysis.

5. The recovery witnesses namely Irfan Ali, T-ASI, complainant (PW-5) and Siraj Ahmed, constable (PW-4) were cross-examined at length by the learned defense counsel but their evidence could not be shaken, which is confidence inspiring. The safe transmission of the parcel of contraband material/case property and sample parcel from the place of occurrence to the Maalkhana of Police Station and to the office of Punjab Forensic Science Agency has been established in this case through the evidence of Munir Ahmed, Inspector (PW-3), Syed Wajid Ali Shah, Moharrar (PW-1), Irfan Ali, T-ASI (PW-5) and Arshad Iqbal, H.C (PW-2). The perusal of Laboratory report (Ex.PE) shows that the parcel of sample was deposited in the Laboratory by Irfan Ali, T-ASI (PW-5). The above-mentioned report further shows that the material recovered in this case was found to be charas.

6. Insofar as the objection of learned counsel for the appellant that the complainant cannot perform the duty of an investigating officer,

is concerned, we are of the view that there is no legal bar on the complainant to also act as an investigating officer of the case. Reference in this context may be made to the judgment reported as Zafar Vs. The State (2008 SCMR 1254). Relevant part of the above-mentioned judgment reads as under:-

“11. So far as the objection of the learned counsel for the appellant that the Investigating Officer is the complainant and the witness of the occurrence and recovery, the matter has been dealt with by this Court in the case of State through Advocate-General Sindh v. Bashir and others PLD 1997 SC 408, wherein it is observed that a Police Officer is not prohibited under the law to be complainant if he is a witness to the commission of an offence and also to be an Investigating Officer, so long as it does not in any way prejudice the accused person.”

Similar view was taken by this Court in the case of Advocate General Sindh Vs. Bashir etc (PLD 1997 SC 408). The judgments in the case of ‘Zafar’ supra and ‘Advocate General Sindh’ supra have been passed by the Benches comprising of four Hon’ble Judges of this Court, whereas the judgment cited by the learned counsel for the appellant in the case of ‘Raham Gul’ ibid has been rendered by a Bench comprising of three (03) Hon’ble Judges of this Court. It is by now well settled that the judgment passed by a larger bench has a binding effect. Moreover, the petitioner could not establish that any prejudice was caused to his case due to the reason that the complainant of this case also investigated the case. The facts of the judgment in the case of ‘Raham Gul’ supra are distinguishable from the facts of the present case. In the case of ‘Raham Gul’ supra, the safe custody of the contraband material was not proved, the recovery was jointly alleged against four (04) accused and the story of prosecution regarding the alleged recovery of narcotics from the feet of accused persons who were travelling in a vehicle did not appeal to a prudent mind, therefore, it was held in the said judgment that the complainant should not have investigated the case because the same had compromised the neutrality of the

investigation whereas, there is no such ground available in this case, hence, the above judgment in the case of 'Raham Gul' ibid is of no avail to the appellant.

7. Learned counsel for the appellant has also argued that the case property was not produced in the court but we have noted that the case property was produced before the Court as P1 during the examination-in-chief of Irfan Ali, T-ASI, complainant (PW-5) and Siraj Ali, constable (PW-4). No objection was raised by learned counsel for the appellant at that time that the case property was not present in the Court and that as to why the case property was exhibited in evidence as P1.

8. Learned counsel for the appellant is unable to point out any misreading/non-reading of evidence or material illegality in the impugned judgment, warranting interference by this Court. There is no substance in this appeal, hence, the same is hereby dismissed.

CRIMINAL MISC. APPLICATION NO. 45-L OF 2026

9. Since, the main appeal filed by the appellant against his conviction and sentence has been dismissed by this Court today, therefore, this application seeking suspension of sentence has become infructuous and the same is dismissed accordingly.

JUDGE

JUDGE

JUDGE

Lahore, the
27th of April, 2026
Approved For Reporting
Khurram